

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 13
Honorable Daniel T. Nishigaya
R. Belligan, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: May 29, 2026 TIME: 9:00 & 9:01 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 8	21CV385110	Charel Winston et al vs Peter Nguyen et al	Motion: Leave to Amend Ctrl Click (or scroll down) on Line 8 for tentative ruling.
LINE 9-11	24CV448245	Hamid Khazaeli vs Julie Cliff et al	Motion Compel/Sanctions/Seal Ctrl Click (or scroll down) on Line 9 for tentative ruling.
		9:01 CALENDAR	
9:01 LINE 1	21CV392258	Hsin Chu vs Hak Chun Ng	Hearing: Order of Examination Due to a Notice of Bankruptcy Stay filed for Judgment Debtor on April 22, 2026, this matter is OFF CALENDAR.
9:01 LINE 2	25CV471942	Jun Lu vs Rozita Dadgostari	Motion: Withdraw as Attorney Based on Substitution of Attorney filed May 4, 2026, this motion is MOOT and OFF CALENDAR.

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Calendar Line 1

Case Name: *Monar LLC vs Kenneth Rodrigues & Partners, Inc. et al*

Case No.: 24CV442463

Defendants (KRP) seek an order: (1) Compelling Plaintiff (Monar) to serve verified a supplemental responses to KRP's Form Interrogatories-Construction, Set One, Special Interrogatories, Set One, and Requests for Interrogatories-Construction, Set One, Special Interrogatories, Set One, and Requests for Production of Documents, Set One in the nature of the Statement of Claim agreed to by them in a fashion admissible in a court of law; (2) Compelling Monar to produce supplemental documents fully responsive to KRP's Request for Production of Documents, Set One, and to identify any and all documents being withheld on privilege or other grounds; and (3) that Monar and its counsel pay monetary sanctions to KRP for reasonable expenses and attorney's fees incurred in connection with this discovery proceeding in the total sum of not less than \$12,000 (with no sanctions being paid by KRP or their counsel to Monar or its counsel).

The Court begins by noting that KRP's indignant tone and hyperbole is bold in a case in which KRP has been sanctioned by this Court for discovery violations on March 12, 2025, March 14, 2025, March 26, 2025, May 7, 2025, August 27, 2025, and August 29, 2025. Monar's opposition is slightly less *ad hominem*. Fortunately, the correspondence between counsel mostly seems to take a different tact and, unusually, the Court actually preferred reading much of that material.

KRP asserts in its memorandum that as of the filing of the motion “absolutely nothing has been provided in the way of supplemental responses or documents” (Memorandum, at p. 7, emphasis original.) Since the filing of the motion, some exchange has taken place or has been promised. For instance, as of May 15, 2026, Monar claimed to be “producing additional responsive documents which were recently obtained from Plaintiff's third-party contractor.” (Opposition, at p. 2.) KRP argues that Monar has never given “an unequivocal statement ... that the ... 858 pages produced to date comprise all of the responsive documents within Plaintiff's possession, custody, or control.” (Reply, at p. 6, emphasis omitted.) This seems to be easily addressed by Monar. “Plaintiff's counsel further represented the Allocation was subject to further change, as additional information in Teamwrkx's production could affect Plaintiff's expert's evaluation.” (Opposition, at p. 4.) Whatever the Teamwrkx material means to the parties' agreement that Monar would provide a verified Statement of Claim or allocation, that material is now with Monar.

Under these circumstances, although the parties perceive they have engaged in an exhaustive meet and confer effort, the Court is going to require more. Indeed, once before the parties resolved or narrowed discovery issues after motions practice was initiated. In light of the current circumstances the Court orders the following:

- 1) The parties are ordered to conduct good faith, reasonable and meaningful meet and confers, either in person, by phone or video conference, to try to narrow the issues in this motion;